

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING SECTION 5.76.050, RESIDENTIAL DOOR-TO-DOOR SOLICITOR RESTRICTIONS-PROHIBITED PRACTICES, OF THE MUNICIPAL CODE OF THE CITY OF CHEYENNE, WYOMING, TO EXPAND THE TYPES OF SOLICITING PROHIBITED AT A RESIDENCE WITH A POSTED 'NO SOLICITORS' NOTICE, TO AMEND THE PERMISSIBLE HOURS FOR SOLICITING, AND TO CLARIFY EXISTING CODE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Section 5.76.050, Residential door-to-door solicitor restrictions-Prohibited practices, of Chapter 5.76, Temporary or Transient Merchants; Residential Door-To-Door Solicitors, of Title 5, Business Licenses and Regulations, of the City of Cheyenne, Wyoming, is hereby amended to read:

5.76.050 - Residential door-to-door solicitor restrictions—Prohibited practices.

- A. No solicitor may solicit without wearing or displaying the assigned license identification badge, as issued by the city clerk, to be viewable by the public at all times when conducting door-to-door solicitation. Upon request by any member of the public or any law enforcement officer, proof of a current and valid residential door-to-door solicitors business license and license identification badge shall be made available for inspection. No solicitor shall allow another individual to use his or her assigned badge, and the badge shall not be worn or used for any other purpose by the solicitor at times other than conducting door-to-door solicitation under the business license.
- B. No person shall engage in or conduct activities as a door-to-door solicitor upon any residential premises without a prior invitation from the occupant or resident thereof if such premises is posted or signed with a notice prominently displayed upon which is printed "no solicitors" or words of similar import. ~~For the purposes of this subsection, A~~ residential premises ~~will be~~ is deemed ~~to be~~ posted against solicitation if the notice is exhibited on or near the main entrance to the premises or on or near the main door to any residence located thereon. For purposes of this subsection, engaging in or conducting activities as a door-to-door solicitor shall include persons:
 - 1. Seeking or requesting a gift or donation for a public entity or nonprofit organization exempt from federal income tax under 26 U.S.C. 501(c);
 - 2. Soliciting the sale of goods, wares or merchandise for present or future delivery, or the sale of services to be performed immediately or in the future, with the entire proceeds of such sale to be paid directly to, or used exclusively for the benefit of, a public entity or nonprofit organization exempt from federal income tax under 26 U.S.C. 501(c);

3. Personally delivering to the occupant or resident a handbill or flyer advertising a future not-for-profit event, activity, good or service;
 4. Distributing religious tracts and information on behalf of a religious organization; or
 5. Engaging in door-to-door canvassing and pamphleteering as a means of disseminating ideas, views or opinions by one engaged in political activities as a candidate or on behalf of a candidate in a recognized federal, state or local election, or on behalf of an issue on an upcoming ballot.
- C. No residential door-to-door business licensee or solicitor shall initiate solicitation activities for potential customer services affiliated with installation of any equipment involving electrical wiring, plumbing or remodeling any portion of a residential structure, without first contacting the city's building safety department to determine whether a license or permit is required.
 - D. No person ~~will~~shall contact, engage in or conduct activities as a door-to-door solicitor after having been asked by the owner or occupant thereof to leave the premises or residence.
 - E. No person shall solicit upon any residential premises, ~~other than except by~~ prior invitation ~~by from~~ the occupant or resident, ~~of the premises, prior to ten a.m. or after seven p.m., local time, or before 7:00 a.m. local time or after sunset on~~ any day.
 - F. Not more than two (2) door-to-door solicitors ~~will~~may engage in or conduct activities as a solicitor at the same location and time for the same goods, merchandise or services, or for religious or charitable purposes. When conducting door-to-door solicitor activities, ~~no a~~ solicitor ~~will~~shall not be accompanied by ~~an any~~ individual who has not been approved to receive a license identification badge. Each unapproved individual ~~in violation of this provision will shall~~ be deemed ~~to have violated such provision. in violation of this subsection.~~
 - G. No solicitor shall, at the time of initial contact with a prospective customer or donor, fail to clearly and verbally identify ~~himself or herself and their name,~~ the business or ~~company he or she represents~~ organization they represent, if applicable, and the purpose of the solicitation.
 - H. No person engaged in or conducting activities as a door-to-door solicitor ~~will~~shall misrepresent the purpose of the solicitation or use any false, deceptive, or misleading ~~or untrue~~ information or practices, including ~~any reference~~ references to orders placed by or sales entered into by other residents or neighbors, to induce a sale, contribution, or placement of an order, ~~or~~ Nor shall any person use any plan or scheme ~~which that~~ misrepresents the true purpose of the solicitation.
 - I. No door-to-door solicitor shall conduct ~~solicitor~~solicitation activities in a disrespectful, discourteous, aggressive, rude, offensive or otherwise inappropriate manner, including

through the use of abusive language. ~~No~~ A solicitor shall not enter any residence without express invitation or block the passage of any occupant or resident.

J. No door-to-door solicitor shall finalize any ~~sales~~ sale or allow a customer to enter into or sign any written agreement pertaining to the ~~purchasing,~~ purchase or delivery, ~~including future deliveries from orders taken,~~ of any goods, merchandise or services, including future deliveries from orders taken, without first verbally informing the potential customer of any city licenses or permits that may be required as the result of the purchase, and that, under Wyoming law, the customer may have, ~~pursuant to Wyoming law,~~ three (3) days in which to cancel the item(s) or services purchased or ordered.

K. No door-to-door solicitor shall make statements to a potential ~~customers or contributors~~ customer or contributor indicating or implying that the residential door-to-door ~~solicitors~~ solicitor's business license or license identification badge issued by the city clerk constitutes an endorsement by the city of the goods, merchandise or services to be offered.

Section 2. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 3. This ordinance shall be in full force and effect upon approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KYLIE SODEN, CITY CLERK

Published: _____
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